term 'forest land' not only includes land notified as such in government records but also that considered 'forest' based on its 'dictionary meaning' as elucidated in the 1996 ruling and the legislative intent of the 1980 Act.

So, how well has the FCA served its intended purpose of conserving forests so far? According to the MoEFCC, between 1950 and 1980, 4.5 million hectares (mha), or 150,000 ha annually, of forest land was diverted for non-forest use. By the early 2000s, in the wake of the FCA, this diversion had gone down to 16,000 ha annually. In fact, between 1980 and 2020, the total forest land diverted is only 1.5 mha, with about 10 per cent going to strategic and defence projects. And fast-tracking such "strategic linear projects of national importance", like highways, pipelines, tunnels and bridges, is the reason cited for exempting forest land situated within a distance of 100 km along India's international borders, Line of Control and the Line of Actual Control from the law's purview.

While national security is undoubtedly of paramount importance, the areas to be impacted are among the most adversely affected by deforestation lately—notably in the Northeastern states. Though the green cover in these states is over 70 per cent, any compensatory plantations—for which the Centre is to frame the guidelines—are unlikely to offset their rich biodiversity, say experts. The amendment bill makes similar exemptions for forest land up to 10 ha for the construction of security infrastructure or up to 5 ha for setting up paramilitary camps and public utility projects in areas affected by Left-wing extremism. Also, small establishments and habitations on the side of public roads and railway lines will be able to get access to main arterial roads and other public utilities by bringing up to 0.1 ha of forest land outside the purview of the Act.

All such exemptions notwithstanding, the Centre claims that "carrying forward the rich tradition of preserving forests and their biodiversity" is at the heart of the amendments. Among the stated objectives is mitigating the impact of climate change and achieving the national targets of net zero emission by 2070. "It has been observed," notes a recent government circular, "that due to apprehensions that plantations on the lands of individuals and organisations can attract the FCA, the afforestation and plantation of trees outside forests is not getting desired impetus, which in turn is becoming a hindrance in enhancing green cover." Thus, the stated aim is to remove any "ambiguity" by prescribing the extent of applicability of the Act on various types of lands. The government claims its immediate target is to increase the tree and forest cover for the creation of a carbon sink of an additional 2.5 to 3.0 billion tonnes of carbon dioxide equivalent by 2030.

According to Prerna Singh Bindra, a former member of the National Board for Wildlife, emphasising the creation of carbon sinks by enhancing the green cover rather than conserving the existing forests is "counter-intuitive". "It has been well-established by numerous studies that natural forests are far more effective in carbon sequestration—by some estimates, 40 times higher—as compared to plantations," she says. There are others in the forestry community, however, who have welcomed the bill. Talking specifically about the Northeast, for instance, R.N. Saxena, a former principal chief conservator of forests, Madhya Pradesh, notes that "above a certain height, where most of the security-related border projects are planned, there is hardly any vegetation, and hence no loss of forests". In case a project is impacting a national park, it will still require the necessary wildlife clearances, he adds.

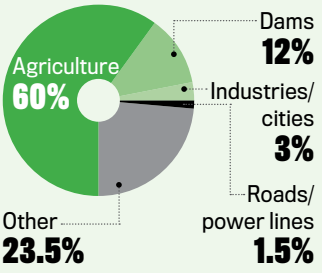
But there are concerns of the amended law infringing upon the rights of tribals and other traditional forest-dwellers by curtailing the powers granted to the local bodies under the Panchayats (Extension to the Scheduled Areas), or PESA, Act, 1996, Forest Rights Act (FRA), 2006, and other such legislations. "In effect, the gram sabha that is to grant consent for projects under the PESA Act will no longer be required to do so," explains Sharachchandra Lele, distinguished fellow at the Ashoka Trust for Research in Ecology and the Environment. "Similarly, under the FRA, the consultation clause with the gram sabha has also been weakened...further reducing the scope for consultation."

The recent floods in North India have shown that nature has its way of reclaiming lost ground. It is, therefore, imperative that the Union government address all key concerns left out in the bill while framing the supporting rules and guidelines. Exhaustive consultation and engagement with all stakeholders will go a long way in conserving India's forests and preventing environmental hazards, whose fury we are becoming regularly subjected to. ■

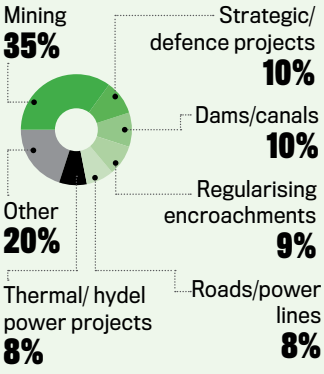
» DIVERSION OF FOREST LAND

The pace of diverting forests to 'non-forest purposes' slowed down in wake of the Forest (Conservation) Act, 1980

1950-1980
4.5 MILLION HECTARES



1980-2020
1.5 MILLION HECTARES



SOURCE: MoEFCC